

25STCV29443 25STCV29443

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-28

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Case Number: 25STCV29443 Hearing Date: July 28, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

¿

RUSSELL BERNEY

Plaintiff,

vs.

AMAURI AZIEL MORALES OROZCO, et al.

Defendants

Case No.:

25STCV29443

Hearing Date:

July 28, 2026

ORDER CONTINUING MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUEST FOR ADMISSIONS
AND DEMAND FOR PRODUCTION OF DOCUMENTS

Plaintiff Russell Berney ("Plaintiff") moves for an order compelling Defendant Progressive Casualty Insurance Company ("Defendant") to produce further responses to requests in the request for admissions, set one, and demand for production, set one, in addition to paying \$9,560.00 in sanctions to Plaintiff.

Plaintiff's motion will be continued to a new date as set forth below. NO HEARING WILL TAKE PLACE ON JULY 28, 2026,

Pursuant to the Court's power to "amend and control its process and orders so as to make them conform to law and justice" (Code Civ. Proc., § 128, subd. (a)(8)), the Court orders the parties in this case to participate in an Informal Discovery Conference ("IDC") with the Court. Lead or other designated counsel for the parties with full authority are ordered to participate in person in an IDC. After consulting with opposing counsel regarding available dates, Plaintiff must make a prompt reservation for the IDC using the Court's online reservation system. The parties shall meet and confer, and Plaintiff shall file a joint statement (five pages or less) addressing all pending motions to compel in the department three days prior to the IDC.¿

Once Plaintiff has confirmed an IDC date, Plaintiff must use the Court's online reservation system to continue the motion to a post-IDC discovery hearing date. The parties are ordered to come prepared with all necessary materials to make the IDC hearing successful. Prior to the IDC date, lead or other designated counsel for the parties, with full authority, are to meet and confer, in person or via telephone in a further attempt to resolve as many of the issues as possible before the IDC. (See Cal. Rule of Court Rule 3.670, subd. (f)(2).) If the parties resolve their discovery disputes before the IDC date, Plaintiff is ordered to take both the IDC and the motion off calendar as soon as possible.¿

Plaintiff is ordered to provide notice of this Order.¿

DATED: July 28, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit no